

Bihar Intermediate Education Council (Establishment of Colleges and Conduct of Examination) Rules, 1994

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State of Bihar - Act

Bihar Intermediate Education Council (Establishment of Colleges and Conduct of Examination) Rules, 1994

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Bihar Intermediate Education Council (Establishment of Colleges and Conduct of Examination) Rules, 1994

Rule

BIHAR-INTERMEDIATE-EDUCATION-COUNCIL-ESTABLISHMENT-OF-COLLEGES-AND-CONDUCT-OF-EXAMINATION-RULES-1994 of 1994

Published on 8 September 1994

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Bihar Intermediate Education Council (Establishment of Colleges and Conduct of Examination) Rules, 1994

Published vide Notification No. G.S.R. 30, published Bihar Gazette (Extra-ordinary) dated 7/8th September, 1994

G.S.R. 30, dated the 8th September, 1994 [Published in Bihar Gazette (Extra-ordinary) dated 8.9.199]. - In exercise of the powers conferred by proviso to sub-section (2) of Section 54 of the Bihar Intermediate Education Council Act, 1992 (Bihar Act 26, 1992) the Governor of Bihar is pleased to make the following Rules for the establishment of institutions and conduct of examination of Intermediate (+2) standard.

1.

Short title and Commencement.

(1)

These Rules may be called the Bihar Intermediate Education Council (Establishment of Colleges and Conduct of Examination) Rules, 1994

(2)

It shall come into force at once.

2.

Definitions.

- In these Rules, unless there is anything repugnant in the subject or context -

(a)

'Act' means the Bihar Intermediate Education Council Act, 1992.

(b)

'Admission' means admission to the privilege of the Bihar Intermediate Education Council.

(c)

'Council' means the Bihar Intermediate Education Council.

(d)

'Course' means the course prescribed for Intermediate (+2) standard by the Council.

(e)

'College' means an institution imparting education of Intermediate (+2) standard in the meaning of Section 39 of the Act.

(f)

'Chairman' means the Chairman of the Council.

(g)

'Courses of Study Committee' means the courses of study committee provided under Section 28 of the Act.

(h)

'College Service Commission' means [College Service Commission]

[It may be noted that Bihar College Service Commission Act, has been repealed by Bihar College Service Commission (Repeal) Act, 2007. For details see Vol-III, Pg. 338 of Bihar Local Law.]

constituted under the Bihar College Service Commission Act, 1976.

(i)

'Exclusion' means exclusion from the privilege of Bihar Intermediate Education Council.

(j)

'Enlistment' means enlistment as a student of Intermediate (+2) standard.

(k)

'Faculty' means the faculty of Arts, Science, Commerce or Vocational Education of a College or Institution.

(l)

'Institution' means an Institution imparting education of Intermediate (+2) standard recognised under the provisions of Section 39 of the Act.

(m)

'Management' means management of a College.

(n)

'Governing Body' means the Governing Body of a College constituted under Section 44 of the Act.

(o)

'Privilege' means the privilege of recognition by Bihar Intermediate Education Council.

(p)

'President' means the President of the Governing Body.

(q)

'Recognition' means recognition by the Bihar Intermediate Education Council.

(r)

'Recognition Committee' means the Recognition Committee constituted under Section 28 of the Act.

(s)

'Secretary' means the Secretary of the Council.

(t)

'Session' means the academic session.

(u)

'State Government' means the Government of the State of Bihar.

Establishment

3.

No Institution shall be established without the permission of the Council.

4.

The Council shall grant permission for establishment of an institution on the following conditions :-

(1)

the Body proposing to establish the Institution must consist of a least Seven members and in case of a minority institution registered under the Societies Registration Act of 1860 (Act 21, of 1860).

(2)

Application for permission shall be made in the prescribed Form with prescribed fees at least six months prior to the commencement of the concerned session.

(3)

On receipt of the application, the council shall cause a spot inspection to be made in which mainly the following points shall be examined :-

(a)

Whether there is a need of an Institution at the proposed spot; and

(b)

Whether the Body which has proposed to establish the Institution capable of running it properly;

(c)

(i)

In respect of clause (a) the distance of recognised Institutions from the proposed spot and the requirements with respect to population shall be taken into consideration.

Explanation. - (i) Ordinarily there should not be a recognised institution in a radius of 8 Kilometers in the rural area and 3 (three) Kilometers in the urban area (having a population of at least 1.00 lac) from the proposed spot and a population of 50,000 should be deemed to be requisite for an Institution.

(ii)

In respect of clause (b), it shall be ascertained - (i) that the body proposing to establish the Institution has resources to meet at least half of the annual recurring cost; and

(iii)

it has ready money in its account to deposit the security money and it has reserve funds for the construction of Building, Laboratory, Library, Principal's Residence and Hostel.

Explanation. - Initially a Building Reserve Fund of 5.00 lacs should be deemed sufficient to start the construction work.

(d)

Pending construction of its own buildings the institution can temporarily procure building of at least 7 rooms (30' x 20') on rent or otherwise for running the classes and the office.

(e)

The institution has obtained, or it may obtain within six months, 7 acres of land in two plots (not more than 500 m. apart) in rural area and 3.50 acres of land in one plot in urban area (having a population of at least 1.00 lac).

(4)

The institution shall not admit students unless permission has been granted by the Council.

(5)

No permission shall be granted with retrospective effect.

(6)

If the institution is proposed as a minority one, a statement showing the reasons thereof, shall be appended to the application for permission.

(7)

If an application for permission is taken back before spot inspection the fees realised for the purpose shall be returned.

Recognition

5.

After grant of permission for establishment to an Institution the Council shall assess it for grant of recognition on receipt of application for this purpose from the Institution.

6.

Subject to the provision of sub-section (3) of Section 41 of the Act an Institution may be granted recognition in one or more of the Faculties.

7.

(1)

An application for recognition shall be made in prescribed Form -

(a)

by an officer authorised by the Government in case of an institution established and owned by the Government.

(b)

by the Organizing or the Managing Body in case of any other Institution.

(2)

The application shall be addressed to the Secretary.

(3)

It shall be submitted within one year of the grant of permission for establishment.

(4)

Each application shall state the Faculty or the Faculties alongwith the subjects in which the institution intends to impart education and it shall furnish the following information :-

(a)

that the Institution owns and possesses 7 acres of land in not more than two plots (not more than 500 m. apart) in rural area and 3.50 acres of land in one plot in urban area (having a population of at least one lac):

Provided that this condition may be relaxed in a case of Institutions established and run by the State Government or the Central Government or by some Public undertaking or Industry under the State Government or the Central Government.

(b)

that the Institution has a Building of its own having sufficient accommodation;

(c)

that the Institution has a hostel which can accommodate at least 10 per cent of the total strength of students in the institution.

(d)

that proper arrangement has been made for supervision and physical welfare of the students;

(e)

that the Institution has a play ground and proper facilities of games and sports;

(f)

that the institution has a library of books and journals total value of which is not less than Rs. 50,000/- for each faculty;

(g)

that the institution has properly equipped laboratory, and where necessary a museum, if recognition is sought in branch of experimental science;

Explanation. - The gas and water-supply, the apparatus, the chemicals, and the design and the general fitting of the laboratory lecture-rooms, and museums shall conform to such requirements as the Council may from time to time prescribe;

(h)

that the Principal's quarters have been constructed or they will be constructed in the campus within specified time;

(i)

that staff quarters have been constructed or they will be constructed within specified time for at least 10% of the teaching and the nonteaching members of the staff;

(j)

that the institution has deposited with the Council a Security Fund of Rs. 1,00,000/- for the first and 50,000/- for each of the sub-subsequent faculties:

Provided that this condition shall not be applicable to an Institution established and run by the State Government or the Central Government or by some Public undertaking or Industry under the State or the Central Government:

Provided further that the Security Fund in case of Institutions in the tribal sub-plan area may be reduced by 50 per cent by orders of the State Government;

(k)

that the Institution has sufficient financial resources fund for meetings recurring expenditure on payment of salary to the staff and maintenance of Library, Laboratories, Furniture and the Buildings and also for other contingencies;

(l)

that proper arrangement has been made for holding tutorial, practical and lecture classes and the space and furniture in each class room is adequate. The Council shall prescribe detailed specification in this regard;

(m)

that qualified teachers have been recruited in adequate number, in each subject;

(n)

that no less than 128 students have been admitted to the first year class of the faculty of Arts/Science. For commerce the minimum number shall be 32 and for Vocational it shall be 16. Provided that no recognition shall be given in a subject of Arts/Science Faculty in which the number of students in the first year is less than 16.

(5)

The institution shall abide by the Rules and Regulations made under the Act and instructions and directives issued by the Council from time to time.

(6)

It shall realise from the students the same fees and fines as have been fixed by the Council.

(7)

The Institution shall enclose with the application the resolution of the Organizing or the Managing Body to the effect that it shall not start degree Classes.

(8)

The Institution shall invariably include the words 'Intermediate College' or in short 'Inter College' in its name.

(9)

Copies of deeds, in favour of the Institution with respect to movable and immovable property shall be appended to the application for recognition.

(10)

The State Government shall have powers to relax the conditions of recognition as provided in Rule 7(4) in case of Women's institution and institutions falling in the tribal Sub-Plan area.

(11)

(a)

On receipt of an application for recognition the Recognition Committee of the Council on being satisfied that the college proposed to be established has fulfilled all the conditions required and is likely to be run efficiently, shall cause a local enquiry to be made as regards the matter specified in Rule by such persons as may be authorised for this purpose.

(b)

On the completion of such enquiry or any further enquiries which may be considered necessary, the Recognition Committee shall recommend to the Council as to whether the application should be granted or it shall be rejected. All connected papers shall be placed before the Council.

(12)

(a)

On receipt of the recommendation of the Recognition Committee, the Council shall either allow the application or reject it and if the application is rejected, the ground of such rejection shall be stated. The Council shall in no circumstances allow provisional or conditional recognition to any Institution, nor shall it allow permanent recognition until all the conditions of recognition have been fulfilled by the concerned institutions.

(b)

All cases allowed by the Council shall be forwarded with all connected papers to the State Government for their approval. Recognition will be granted by the Council on receipt of the approval of the State Government.

(13)

The decision of the Council shall be communicated to the institution concerned specifying the Courses of Instruction in which the institution is recognised.

(14)

In case of temporary recognition the sessions for which recognition has been allowed shall be specified along with conditions for extension of recognition.

(15)

All applications for extension of recognition shall be made six months before the expiry of recognition, stating therein that the condition of extension has been fulfilled.

(16)

(a)

If a college intends to add any subject to the Courses of Instruction from a particular, an application for permission to make shall be made by the 31st of December of proposed the preceding session.

(b)

Provision of Rule 7 shall apply to such application.

(17)

Any application for recognition may be withdrawn at any time before an order has been passed.

(18)

Any Recognised Intermediate Collage may on the recommendation of the Recognition Committee, be deprived by the Council, in whole or in part of the privileges granted to in the following circumstances -

(a)

if the conditions of recognition are not fulfilled or observed.

Or

(b)

the Rules of the Council are not being observed.

Or

(c)

there is gross mismanagement in the Institution.

(19)

The Council shall before taking any decision on the recommendation of the Recognition Committee under Rule 18 shall issue a show cause notice to the Secretary of the Governing Body of the College concerned or the concerned Officer in case of Government Institution giving reasonable time to reply.

(20)

On receipt of the representation of the College or if no such representation is received, on the expiry of the period of show cause the Council may make such inspection or enquiry as it may deem necessary.

(21)

After consideration of the representation if any, of the College and report of inspection or enquiry, if any, the Council may, take such decision as it may deem proper.

(22)

When a decision is made depriving a College either in whole or in part, of its privileges, the ground of such decision shall be stated. The decision of the Council shall be communicated to the College immediately.

(23)

A College on previous approval of the Council, may suspend instruction from the beginning of an academic year in any subject Or courses of study. The classes suspended shall not be resumed without sanction of the Council and if the classes are not resumed in three consecutive years the admission previously granted shall lapse.

(24)

If for any reason, a college is unable to open classes and impart instructions for a consecutive period of three years in any of the subjects the privilege previously granted in such subject shall lapse.

Management

8.

(1)

As provided in the Act. There shall be a Governing Body constituted for the management and administration of every

recognised college, except a college managed and maintained by the State Government or a college established and administered by a religious or linguistic minority.

(2)

The members of a Governing Body, other than ex-officio members shall hold office for a term of three years except the teachers' representative whose term of office shall be for one academic year. Any member except an ex-officio member, who fails to attend four consecutive meetings without prior information shall be deemed to have vacated his seat in the Governing Body. In the event of a casual vacancy, the nomination or election or co-option, as the case may be, shall be for the residue of the term.

(3)

The Governing Body shall meet at least once in every quarter. Seven days' clear notice shall be given for a meeting: Provided that the President, may, in case of urgency, direct to call an emergent meeting at shorter notice.

(4)

Five members shall form a quorum for a meeting of the Governing Body. No quorum shall be necessary for an adjourned meeting.

(5)

The Governing Body shall elect a President from amongst its members, who shall preside at the meeting and in the case of his absence in a meeting, the members present shall elect one from amongst themselves to preside.

(6)

The meeting regarding the co-option of educationist member and election of President and Secretary shall be convened and its proceedings recorded by the Head of the College.

(7)

The meetings for the election of the teachers representative and that of the donor-member shall be convened and conducted by the Principal/Head of the College.

(8)

(a)

Every college shall maintain a separate donor register in which the names and addresses of all persons who have donated at least Rs. 25,000 (Rs. Twenty-five thousand) to the college, either in cash or in kind, shall be entered.

(b)

The donor register shall be kept up-to-date and every person whose name is entered in the said register and if he is above 21 years of age, shall be entitled to vote at and to offer himself as a candidate in election to the Governing Body as provided in the Act.

(c)

All objections relating to entry or omission in this donor register and relating to election shall be made in writing to the Secretary of the Council and on such objections the decision of the Chairman or Council, if he refers the matter to Council, shall be final.

(9)

The Governing Body shall elect one of its members as Secretary.

(10)

In respect of matters relating to election not expressly provided in the Act or the Rules, the Chairman of the Council may give directions consistent with the Act and the Rules.

(11)

(a)

If the Council suo motu or on receipt of any information is of opinion that the Governing Body of a college has not been properly constituted or that the Governing Body is not functioning properly, it may for reasons to be recorded direct that the Governing Body to be reconstituted forthwith.

(12)

Vacancy in the Governing Body due to non availability of eligible candidate may be filled up by nomination by the Council.

(13)

The Governing Body besides the functions assigned to it in the Act, shall perform the following :-

(a)

Grant of leave (other than C.L) and allowances.

(b)
Imposition of Penalties on the staff in accordance with the rules to be prescribed in this behalf.

(14)

The Secretary shall be the agent and the Executive Officer of the Governing Body and shall :-

- (a)
convene meetings of the Governing Body and prepare agenda thereof including items suggested by the Principal;
- (b)
record the proceedings of the meeting of the Governing Body;
- (c)
carry on correspondence with the Council and the Government and others with regard to the decisions of the Governing Body;
- (d)
on applications being recommended by the Principal, grant all kinds of leave, other than casual or quarantine leave, to the staff in anticipation of the sanction of the Governing Body where such sanction is needed.
- (e)
be responsible for implementing the decisions taken by the Governing Body.
- (f)
forward copy of the proceedings of the meeting of the Governing Body to the Council within two weeks of the date of the meetings.

(15)

In every recognised college, the Principal shall be responsible for the general administration and discipline of the college. All members of the staff of the college will be under his control, and he shall -

- (a)
assign duties (teaching, administrative and extracurricular) to the staff of the college and see the performance of these duties by them.
- (b)
be responsible for the maintenance of discipline in all its aspects and the development of corporate life in his college.
- (c)
grant casual or quarantine leave, or Permission to leave the station to the members of the staff of the college.
- (d)
be the custodian of all records of the College.
- (e)
carry on all correspondence, in respect of academic and administrative matters of the college.
- (f)
subject to the control and direction of the Council, have powers to make bye-laws not inconsistent with the laws of the Council, for the internal management and guidance of the departments, clubs, societies, staff and students of his college, but copy of such bye-law shall be submitted to the Governing Body and the Council for information with fifteen days of its issuance.
- (g)
be responsible for the enforcement and observance of the laws of the Council.
- (h)
be responsible for the incurring of all sanctioned expenditure.

(16)

In case of any difference between the Principal and the Secretary in any matter concerning the College, either of them may refer the matter to the Governing Body for decision.

The Council, if necessary, may, by Rule, provide for the respective powers, duties and functions of the Governing Body, Secretary and Principal of recognised College.

(17)

Till the constitution of the Governing Body, the Council shall constitute an Ad hoc Committee under the provisions of the Act, which shall consist of the following members: -

(a)

Head of the Institution:

(b)

One representative of the Council, who will be nominated by the Council from amongst the teachers of the neighbouring institution having at least ten years of teaching experience.

(c)

A member of the Parliament or the State Legislature who mainly resides in the district of that area to be nominated by the Council:

Provided that preference shall be given to the local member of the Legislative Assembly.

(d)

A Government Officer posted in the district who shall be either a Subdivisional Magistrate or an officer of the rank of Sub-Judge, to be nominated by the Council.

(e)

One member to be co-opted by the members at Clauses (a) and (d) from amongst the sponsors of the College.

(f)

The Government Officer at clause (d) shall be the Convenor of the Ad hoc Committee.

Staff

9.

(1)

(a)

All constituent colleges and affiliated Degree Colleges under the Universities of Bihar shall allocate Teaching and Non-teaching Staff to the Intermediate Section of their institution under the provision of their respective University Acts.

(b)

Such colleges shall appoint departmental heads in each subject or group of subjects in commerce as the case may be for their Intermediate Section. The senior-most among the heads of the Department Incharge of the Intermediate Section:

Provided that if such college is not in a position to allocate teachers independently to the Intermediate Section for dearth of hands, it shall report the matter to the Vice-Chancellor/Governing Body, as the case may be with a copy to the Intermediate Council and the State Government and send proposal for creation of additional posts according to requirement.

(c)

Accounts of the Intermediate Section shall be maintained separately.

(2)

Subject to the provisions of the Act, Intermediate colleges recognised by the Council shall appoint a Principal, and at least one teacher in each of the recognised subjects.

(3)

Subject to the provisions of the Act, a recognised Intermediate Colleges shall have at least the following non-teaching staff :-

(i)

Head Clerk-cum-Accountant - One

(ii)

Cashier-cum-Counter Clerk - One

(iii)

Typist - One

(iv)

Asstt. Librarian - One

(v)

Class IV employees - Three.

(4)

Subject to the provisions of the Act, all appointments of teaching and nonteaching staff of a college shall be made according of the Government.

(5)

The salary, allowance, requisite qualifications and other service conditions of services of the teaching and non-teaching staff shall be the same as may be prescribed by the Council with approval of State Government.

Admission

10.

(1)

Admission of students in different Faculties and subjects in the institution shall be regulated by the Council.

(2)

No student shall be admitted to the Intermediate Course of any institution unless he has passed the Secondary School Examination held by the Bihar Secondary School Examination Board or its equivalent recognised by the State Government or the Central Government.

(3)

In all admissions, the Rules of reservation prescribed by the State Government shall be followed.

(4)

Admissions shall be completed within one month of the publication of the results of the Bihar Secondary School Examination Board.

(5)

The fees, fine and other charges shall be the same as may be prescribed by the Council.

Courses of Study

11.

(1)

Courses of study for Intermediate (+2) class shall be prescribed by the Council on the recommendation of the Courses of Study Committee.

(2)

The courses shall be of two academic year duration.

(3)

Number of lectures, tutorial and practical classes per week in a subject paper shall be prescribed by Regulations.

(4)

Before the end of the second academic year, there shall public examination.

(5)

In one academic year there shall be at least 200 working days.

(6)

No student shall be sent-up for the final examination unless he has attended at least 75 per cent of the total classes held.

Enlistment

12.

(1)

All students admitted to the Intermediate Courses shall be required to enlist themselves with the Council:

Provided the student otherwise qualified for admission to Intermediate classes, but not admitted to an institution, may enlist himself with the Council as private candidate.

(2)

Eligibility and other conditions for enlistment as private candidates shall be prescribed by Regulations.

(3)

Application for enlistment shall be made in the prescribed Form 1 with the prescribed fee through the Principal of the institution.

(4)

Enlistment forms of regular candidate must reach the Council by 31st December of the year of admission:

Provided that the Council may accept enlistment Form with prescribed fee and fine till the end of first academic year:

Provided, further that the Chairman in special circumstances to be prescribed by the Council may extend the date of enlistment.

(5)

Names of enlisted candidates shall be entered in the prescribed register.

(6)

The Register shall contain information about the candidate's subject of examination, his transfer, Migration, success or failure at the examination and orders of expulsion and rustication, if any.

(7)

After enlistment, the student shall be granted a certificate showing enlistment number, signed by the Secretary or any other officer of the Council authorised by the Secretary in this behalf.

(8)

The enlistment number shall be mentioned in all communications to the Council in the application for the examination.

(9)

Names of students who migrate shall be deleted from the Register.

(10)

Enlistment shall be valid for examinations of three consecutive years only.

Chapter III

Examination, Evaluation and Publication of Result

13.

(1)

A student enlisted with the Council may be admitted to the final examination in the Faculty and subjects with which he has been enlisted and in which he has qualified for appearing at the examination, on payment of prescribed fee.

(2)

(a)

The examination shall be conducted by means of printed or cyclostyled or typed question papers and the same question papers shall be used at every place at which the examination is held:

Provided that the Council, may, if it considers necessary, use separate question papers in any subject or subjects for the examinees of different faculties or for collegiate, ex-collegiate or private candidates:

Provided further that where the Council is satisfied that owing to unavoidable circumstances the examination could not be held at once or more centres on the scheduled date or dates, separate question papers may be used for conducting the examination at the centre or centres concerned in the paper/papers in which the examination could not be held.

(b)

Subject to the provision of sub-clause (a) for the subjects which are common to more than one faculty and in languages and literature taught as optional and compulsory subjects the syllabi and question paper shall be the same.

(c)

The question papers in all non-language subjects shall be set in Hindi.

With English version. The question in languages and literature shall be set in the language concerned except where otherwise specifically required.

(3)

(a)

The medium through which a candidate shall answer the question shall be Hindi for all non-language subjects,

Provided that: -

(i)

the technical terms in English may be retained for the present.

(ii)

a candidate may answer the questions in English, Urdu, Bangla or Oriya till such year as the Council may decide.

(b)

Except where otherwise specifically required the medium through which a candidate may answer the questions in the language subjects shall be as follows: -

Language

Medium of Examination

(i)

Hindi

Hindi

(ii)

Persian

Persian/Urdu/Hindi

(iii)

Arabic

Arabic/Urdu/Hindi

(iv)

English

English

(v)

Any other language

The language concerned and/or Hindi.

(4)

Subjects, full marks, pass marks and duration of examination shall be as prescribed in the courses of study.

(5)

The moderation, divisions and distinctions of result provided shall be regulations as prescribed.

(6)

(a)

Subject to the provisions of the Act (a) the Chairman shall constitute a Board of Moderators in each subject or group of subjects or in commerce as the case may.

(b)

The Board shall ordinarily consist of not more than five persons who shall be teachers of the subjects concerned with at least ten years, teaching experience in an institution. The convenor of the Board shall be nominated by the Chairman.

(c)

The term of members of a Board shall be for one year from the date of appointment. In case of casual vacancy due to any reason, the Chairman, may fill up the vacancy for the remainder of the period.

(d)

Two members of the Board shall constitute the quorum.

(e)

The Board of Moderators in each subject shall:

(i)

Recommend to the Chairman of the Council panels of names for papers Setters, Head-Examiners and examiners of the respective subjects out of which the Chairman shall appoint paper-setters, head-examiners and examiners;

(ii)

While moderating, the Board shall see that the questions have been fairly distributed over the whole course and that the questions are such as candidates could reasonably be expected to answer within the time allotted.

In case any question paper set, in the opinion of the Board, is unsuitable it may reject that paper giving reasons thereof and set another paper.

(iii)

The Chairman may constitute a special Board of Moderators in any subject, if the situation so warrants,

(iv)

The Council shall keep for reference a list of teachers working in institutions of Intermediate Education:

Provided that no person shall qualify to be appointed as paper-setter unless he/she has at least ten years' teaching experience in an institution:

Provided further that in special circumstances where teachers with requisite teaching qualifications and experience are not available, the Chairman may appoint a person known for scholarship in the subject as a paper-setter.

(7)

No person shall be appointed as paper-setter or moderator: -

(a)

If a near relation of the person concerned is appearing in the Examination concerned.

Explanation. - Wife/Husband, Son/Daughter, Father/Mother, First Uncle/Aunt, full Brother/Sister, first cousin, first

nephew and niece, daughter-in-law shall be considered to be near relations,

(b)

If he is privately coaching or has coached during two years preceding the year of the examination of any candidate appearing at the examination:

Provided that if the Chairman is satisfied that a person appointed as a Paper-Setter, Moderator, Examiner, Head Examiner, Tabulator has been found guilty of dishonesty or misconduct he may cancel his appointment forthwith;

(c)

If he has published any note on the subject for the examination concerned; or has a share or monetary interest in any book published or recommended by or on behalf of the Council,

(d)

If he is an employee or a member of the Council,

(e)

If his name has been removed by the Council from the approved panel of names for any reasons whatsoever.

(8)

No person shall be appointed as Head-Examiner unless he has five years' experience-as Examiner in that subject with teaching experience of at least ten years' in a recognised institution.

(9)

(a)

No person shall be appointed as an Examiner unless he has at least three years of teaching experience in his subject in a recognised institution.

(b)

No person shall be appointed as an examiner if he has a near relation appearing at the examination concerned.

(c)

No person shall be appointed as an Examiner of candidates whom he has coached privately.

(10)

The names of Paper-setters, Head Examiners and Examiners and the distribution of answer scripts for evaluation shall be kept strictly secret, till the publication of results.

(11)

The Chairman shall issue directives, instructions, and guidance to the Paper-Setters, Head examiners and examiners in respect of their respective jobs.

(12)

(a)

Chairman shall fix centres for examinations which shall be in institutions having proper facilities for the purpose.

Explanation. - 25 sq.ft. of floor area with requisite furniture shall be necessary for one examinee, and an examination centre shall have adequate floor area and furniture for at least 500 students sitting at a time. A practical examination centre shall have well furnished laboratory for the subject concerned with gas and water supply.

(b)

The Chairman shall appoint a Superintendent of Examination and a Deputy Superintendent if necessary, for each Examination Centre. Ordinarily, the Principal of the institution shall be appointed as the Superintendent. But if there is no Principal, the Superintendent may be appointed from amongst the senior teachers of the College.

(c)

The Chairman, after being satisfied that the examination in a particular Centre is not being conducted fairly, may take necessary action to maintain the sanctity of examination.

(d)

The Chairman shall take necessary steps and make necessary arrangements for Vigilance of Examination Centres.

(e)

Examinees shall be allocated to the Centres by the Chairman and no change shall be made.

(13)

The Superintendent shall be responsible for proper conduct of examination at the Centre and for safe custody and despatch of all documents and materials, for which the Chairman shall issue necessary directives to the Centre Superintendents.

(14)

(a)

The Centre Superintendent shall appoint invigilators ordinarily from amongst the teachers of the institution according to norms prescribed by the Council.

(b)

Daily seat plan of examinees shall be maintained at the Centre and a copy thereof shall be sent to the Secretary.

(c)

Attendance of examinees will be taken in each sitting, which shall be sent to the Secretary within one week of the last sitting of examination. A photo copy certified by the Superintendent shall be retained at the Centre for future reference.

(d)

The examinees shall also sign on the roll sheets (two copies) one copy of which shall be returned to the Secretary within one week of the last sitting of Examination.

(e)

All cases of use of unfair means shall be reported to the Secretary, and the corresponding answer scripts signed by the invigilator as well as the Superintendent shall be forwarded to the Secretary under sealed cover.

(f)

The Chairman shall constitute a Committee for looking into cases of use of unfair means and recommending penal measures according to the gravity of the case, the punishment whereof may be cancellation of examination of that paper/or that year/debarring the examinee from subsequent examination or examinations, Criminal cases too may be instituted in accordance with law.

(g)

If the Superintendent/Magistrate deputed at the Centre is of opinion that there has been large scale use of unfair means or that the secrecy of question paper has been violated, he may recommend cancellation of examination of the paper/papers concerned, to the Chairman and the Chairman shall give such direction as he may consider necessary and fit.

(15)

Results shall be released to the Press/Colleges with the approval of the Chairman.

(16)

If the Chairman is satisfied that the questions in a subject are such as the candidates could not reasonably be expected to answer within the time allotted or the questions have not been fairly distributed over the whole course in that subject or do not conform to the Regulations laid down for the examination in that subject or show a marked change of standard or that from any other causes injustice has been or is likely to be caused, he shall obtain the advice of a Board of experts appointed for the purpose and give such direction as he considers necessary and fit.

(17)

(a)

An examinee who reasonably believes that his marks in a particular paper/papers are much lower than expected, he may apply for scrutiny of his answer script with requisite fee prescribed by the Council, within one month of the publication of the last instalment of the result.

(b)

The Council shall get such answer scripts scrutinized by subject experts who shall see that all answers/part of answers are evaluated, marks from inside have been carried over to the face and the totalling is correct. In cases of discrepancy they will report the matter to the Chairman for necessary correction.

(18)

Examiners/Evaluation Centres, Tabulators/Tabulation Centres shall keep all answer scripts and Registers and other documents ready for submission as soon as their respective works are completed and the Council shall arrange for their collection within one week of completion of the work.

(19)

All answer scripts shall be preserved at least for a period of six months from the date of the examination of the last sitting and will not be disposed of till scrutiny as provided in Clause (17) has been completed.

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